

13	Solorzano v. T&J Fresh Co. 2018-00981299	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for approval of a \$110,000 PAGA settlement. The court has the following questions and comments: <u>As to the settlement:</u> 1. The parties have added terms to paragraph 5 of the settlement agreement, including that if defendant defaults on the second settlement installment payment and does not cure the default, the settlement agreement "shall become null and void." Amendment ¶ 2.6 (revising paragraph 5). Why would the settlement agreement become "null and void" if defendant does not pay the entire settlement amount? In addition, in the event the court grants approval of the settlement, the court will enter judgment based on the settlement agreement. 2. Plaintiff's counsel states plaintiff seek a \$7,500 enhancement payment. As an initial matter, and as identified in the court's August 21, 2025 order (ROA 499), the settlement agreement remains inconsistent regarding an enhancement payment for plaintiff. <i>Compare</i> Settlement Agreement ¶¶ 1.16, 3.2.3 <i>with</i> Settlement Agreement ¶¶ 1.10, 1.15; see also 8/21/25 Order (ROA 499) No. 3. The amendment to the settlement agreement does not address this issue. In addition, absent unique circumstances, the court is unlikely to approve an enhancement award for plaintiff of more than \$500 for this modest settlement. If any such unique circumstances exist, plaintiff should identify them in the supplemental filing. 3. In the August 21, 2025 order, the court stated that the settlement agreement provides defendant will pay the gross settlement amount in two "installment" payments. Settlement Agreement ¶ 4.3. The court asked why defendant is paying the settlement in two payments, and stated that if that is due to defendant's financial condition, the parties must submit evidence of defendant's financial condition, such as cash flow statements, profit and loss statements and a balance sheet. Plaintiff's counsel states that "[d]efendant confirmed that it was financially incapable of paying the settlement in a lump sum and will submit financial documentation to the court to support its financial condition." Supp. Jackson Decl. (ROA 514) ¶ 7. Defendant has not submitted any No financial documentation to the court. 4. In the August 21, 2025 order, the court stated that plaintiff's counsel sought costs in the amount of \$24,727.89. The court stated that (i) postage charges are not recoverable and should be removed and (ii) plaintiff should explain the translation charges and state the depositions taken and when they were taken. 8/21/25 Order (ROA 499) No. 9.
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14	Torres-Sanabria v. National Instruments Corporation, et al. 2023-01369943	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future